

## CCRB INVESTIGATIVE RECOMMENDATION

|                                                  |                                                           |                           |                                                                                                                                                                                                                       |
|--------------------------------------------------|-----------------------------------------------------------|---------------------------|-----------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
| Investigator:<br>Jennifer Smith                  | Team:<br>Squad #14                                        | CCRB Case #:<br>201707584 | <input checked="" type="checkbox"/> Force <input type="checkbox"/> Discourt. <input type="checkbox"/> U.S.<br><input type="checkbox"/> Abuse <input checked="" type="checkbox"/> O.L. <input type="checkbox"/> Injury |
| Incident Date(s)<br>Tuesday, 08/22/2017 6:10 PM  | Location of Incident:<br>Broadway Junction subway station | 18 Mo. SOL<br>2/22/2019   | Precinct:<br>73                                                                                                                                                                                                       |
| Date/Time CV Reported<br>Thu, 09/14/2017 3:55 PM | CV Reported At:<br>CCRB                                   | How CV Reported:<br>Phone | Date/Time Received at CCRB<br>Thu, 09/14/2017 3:55 PM                                                                                                                                                                 |

| Complainant/Victim | Type | Home Address |
|--------------------|------|--------------|
|                    |      |              |

| Witness(es) | Home Address |
|-------------|--------------|
|             |              |

| Subject Officer(s) | Shield | TaxID  | Command |
|--------------------|--------|--------|---------|
| 1. POM Jean Luna   | 28740  | 957791 | TB DT33 |

| Witness Officer(s)    | Shield No | Tax No | Cmd Name |
|-----------------------|-----------|--------|----------|
| 1. POM Mohsan Shahbaz | 14852     | 961276 | TB DT33  |
| 2. POM Gm Rahman      | 05182     | 948503 | TB DT33  |
| 3. LT Keith Gallagher | 00000     | 938517 | TB DT33  |

| Officer(s)        | Allegation                                                                          | Investigator Recommendation |
|-------------------|-------------------------------------------------------------------------------------|-----------------------------|
| A . POM Jean Luna | Off. Language: Police Officer Jean Luna made remarks to § 87(2)(b) based upon race. | A . Unsubstantiated         |
| B . POM Jean Luna | Force: Police Officer Jean Luna used physical force against § 87(2)(b)              | B . Exonerated              |

### Case Summary

On September 14, 2017, § 87(2)(b) called the CCRB and filed this complaint.

On August 22, 2017, at approximately 6:10 p.m., Police Officer Jean Luna of Transit District 33 arrested § 87(2)(b) in the Broadway Junction subway station in Brooklyn for § 87(2)(b). PO Luna allegedly called § 87(2)(b) a “nigger” (**Allegation A: Offensive Language, unsubstantiated**), and pushed § 87(2)(b) into a wall (**Allegation B: Force, exonerated**). § 87(2)(b) [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

There is no video footage of this incident.

### Findings and Recommendations

#### **Allegation A- Offensive Language: Police Officer Jean Luna made remarks to § 87(2)(b) based upon race.**

It is undisputed that PO Luna approached § 87(2)(b) in the Broadway Junction subway station after another passenger, § 87(2)(b) reported that § 87(2)(b) had assaulted her.

§ 87(2)(b) said that he inadvertently bumped into § 87(2)(b) as he exited a subway car and § 87(2)(b) ran to the stationhouse located in the subway station as he walked through the turnstile toward the subway station exit (01 Board Review). § 87(2)(b) pointed out § 87(2)(b) to PO Luna. § 87(2)(b) continued walking toward the subway station exit. PO Luna, who was holding handcuffs in his hand, and an unidentified officer ran toward § 87(2)(b). PO Luna grabbed § 87(2)(b)'s right shoulder from behind. PO Luna allegedly said either, “Nigger, where are you going?” or “Boy, where are you going?”

§ 87(2)(b) said that she identified § 87(2)(b) to PO Luna as the man who had assaulted her (02 Board Review). PO Luna and an unidentified officer ran after § 87(2)(b) and yelled “stop.” § 87(2)(b) denied hearing PO Luna make the alleged offensive statement. § 87(2)(b) screamed that § 87(2)(b) was a “white bitch” and that officers were racist. An unidentified civilian witness said to § 87(2)(b) “Don’t worry. I saw what happened. They’re racist. It’s because she is white.”

§ 87(2)(g) PO Luna approached § 87(2)(b) and said he was under arrest and to put his arms behind his back. PO Luna denied making the alleged offensive comment. PO Luna acknowledged approaching § 87(2)(b) with another officer, but he could not recall who. His partner that day was Police Officer Steven Perez, who resigned from service on December 25, 2017 as per the NYPD Department Advocate’s Office (13 Board Review). PO Luna did not recall if PO Perez was the officer who assisted in § 87(2)(b)'s apprehension, though his pedigree information was consistent with § 87(2)(b)'s description of the witness officer (15 Board Review). However, due to PO Perez’s resignation, he could not be interviewed.

PO Mohsan Shahbaz (04 Board Review), PO Gm Rahman (05 Board Review), Lieutenant Keith Gallagher (06 Board Review), PO Erik Olsen (07 Board Review), PO Asaduz Zaman (08 Board Review), and PO Euri Rojasminaya (09 Board Review) were all interviewed because they were named on police documents related to § 87(2)(b)'s arrest, were assigned to stationhouse assignments, or were assigned to foot posts inside of the subway station at the time of this incident. However, all of these officers denied witnessing this incident.

§ 87(2)(g)

§ 87(2)(g)

It is therefore recommended that **Allegation A** be *unsubstantiated*.

**Allegation B- Force: Police Officer Jean Luna used physical force against § 87(2)(b)**

§ 87(2)(b) said that after § 87(2)(b) pointed him out to PO Luna and he continued walking to the exit, and after PO Luna ran toward him and grabbed his shoulder, PO Luna threw § 87(2)(b) against a wall, causing the front of his entire upper body to make contact with the wall. PO Luna held § 87(2)(b)'s shoulders against the wall. § 87(2)(b) twisted his upper body and wiggled his arms. An unidentified civilian witness told § 87(2)(b) to “calm down” and § 87(2)(b) stopped twisting his body and wiggling his arms. PO Luna handcuffed § 87(2)(b). § 87(2)(b) did not sustain any injuries.

§ 87(2)(b) said that § 87(2)(b) said, “What the fuck? I’m leaving. You can’t tell me what to do,” when PO Luna approached him. PO Luna ordered § 87(2)(b) to put his hands behind his back. § 87(2)(b) moved his body from side to side and put one of his arms above his head. PO Luna and an unidentified officer held § 87(2)(b)'s other arm and placed § 87(2)(b) against a wall with his chest facing the wall. § 87(2)(b) denied that PO Luna threw § 87(2)(b) against the wall.

PO Luna said that he ordered § 87(2)(b) to put his arms behind his back, but § 87(2)(b) stood in place and failed to comply with the order. PO Luna grabbed one of § 87(2)(b)'s arms and an unidentified officer grabbed § 87(2)(b)'s other arm. PO Luna handcuffed § 87(2)(b). PO Luna denied throwing § 87(2)(b) against a wall and did not recall if he ever placed § 87(2)(b) against a wall. PO Luna denied using physical force against § 87(2)(b).

PO Shahbaz, PO Rahman, and Lieutenant Gallagher denied witnessing this incident, but all acknowledged seeing § 87(2)(b) later on at the stationhouse. PO Shahbaz processed § 87(2)(b)'s arrest and PO Rahman vouchered § 87(2)(b)'s property. PO Shahbaz and Lieutenant Gallagher denied witnessing any injuries on § 87(2)(b).

PO Olsen, PO Zaman, and PO Rojasmnaya denied witnessing any aspect of this incident.

NYPD Patrol Guide, Procedure 221-02 states that a member of service should apply no more than reasonable force necessary to gain control (10 Board Review).

§ 87(2)(g)

§ 87(2)(b) said that he did not stop after he saw § 87(2)(b) identify him to officers and that he did not stop when he saw PO Luna running toward him with handcuffs. § 87(2)(g) moved his arms when PO Luna attempted to place him in handcuffs. § 87(2)(g)

It is therefore recommended that **Allegation B** be *exonerated*.

**Civilian and Officer CCRB Histories**

- This is the first CCRB complaint to which § 87(2)(b) has been a party (14 Board Review).

- PO Luna has been a member-of-service for three years and this is the first CCRB complaint to which he has been a subject.

## Mediation, Civil and Criminal Histories

- This complaint was not suitable for mediation.
- As of March 29, 2018, the Notice of Claim inquiry sent to the NYC Comptroller's Office was still pending and will be added to the case file upon receipt (12 Board Review).

[illegible]

Squad: 14

Investigator: \_\_\_\_\_

Signature \_\_\_\_\_ Print \_\_\_\_\_ Date \_\_\_\_\_

Squad Leader: \_\_\_\_\_

|                 |       |      |
|-----------------|-------|------|
| Title/Signature | Print | Date |
|-----------------|-------|------|

Reviewer: \_\_\_\_\_

Title/Signature                  Print                  Date